

Client Services Agreement

Workflow improvement, practical systems and controlled AI support

Provider	Heutrix Pty Ltd
Provider ACN / ABN	_____ COMPLETE BEFORE ISSUE
Client	_____ _____
Agreement date	_____ _____
Version	1.0 1 August 2026

How this agreement works: This agreement contains the standing terms. Each project starts only when both parties sign an Order Form or Statement of Work (SOW). Data access and AI use must also be expressly approved where relevant.

1. Agreement structure

This Client Services Agreement is between Heutrix Pty Ltd (Heutrix) and the Client identified above. It starts on the Agreement date and applies to every SOW signed under it.

A SOW may add or change terms for that project. If documents conflict, the order is: the SOW's Special Conditions; the SOW; an expressly activated Data Handling or AI Schedule; this agreement. A purchase order is administrative only and does not amend these terms unless both parties sign the amendment.

No project begins by implication. A proposal, estimate, workshop discussion or email is not a SOW unless it clearly identifies itself as one and is signed by both parties.

2. Definitions

Acceptance Criteria. the objective criteria stated in the SOW for determining whether a Deliverable is complete

Applicable Privacy Law. the Privacy Act 1988 (Cth), Australian Privacy Principles, Health Records Act 2001 (Vic), applicable State or Territory health-records laws, and any other privacy, data-protection or breach-notification law binding on a party or the relevant handling

Background Materials. methods, templates, software, know-how, prompts, libraries, processes and other materials developed independently of the SOW or used generally across projects

Client Data. information, records, content, credentials or data made available by or for the Client, including Personal Information

Client Materials. Client Data and all documents, systems, branding, IP and other materials supplied or licensed by the Client

Confidential Information. non-public business, technical, financial, security, personal or operational information disclosed in any form, including the terms of a SOW

Deliverable. an output expressly identified as a deliverable in a SOW

Personal Information. personal information, sensitive information and health information as defined by Applicable Privacy Law

Security Incident. actual or reasonably suspected unauthorised access, disclosure, loss, alteration, destruction or unavailability of Client Data, or compromise of a system used to handle Client Data

Services. the services described in a signed SOW

SOW. an Order Form, Statement of Work or change request signed by both parties under this agreement

3. Services and professional standard

Heutrix will perform the Services with due care and skill, using appropriately skilled personnel, in accordance with the signed SOW and applicable laws. Heutrix will keep the Client reasonably informed of material progress, assumptions, risks and decisions required from the Client.

Heutrix may use employees and subcontractors and remains responsible for their performance. A subcontractor may access Personal Information or Client systems only if approved as required by the Data Handling Schedule and bound by written obligations no less protective than the relevant obligations in this agreement.

Heutrix provides operational workflow, system and controlled AI support. Unless a SOW expressly says otherwise and Heutrix has the required qualified capability, the Services do not include legal, tax, financial, employment, clinical, medical, regulatory, official audit, NDIS registration, compliance assurance or medical-device advice or services.

Recommendations are based on the information, access and assumptions available at the time. Heutrix does not guarantee cost savings, revenue, productivity, registration, compliance, regulatory approval or other business outcomes.

4. Client responsibilities

- Give timely, accurate and complete information, decisions, approvals, access and feedback reasonably required for the Services.
- Appoint an authorised project owner and appropriate reviewers, including privacy, security, clinical, safeguarding or professional reviewers where relevant.
- Ensure it has lawful authority to provide Client Materials and instructions, and that required notices, consents and permissions are in place.
- Maintain backups, business continuity, user administration and security for Client-controlled systems unless the SOW expressly allocates a task to Heutrix.
- Review Deliverables and all material outputs before operational use, especially where they affect patients, participants, workers, safety, rights, payments, compliance or professional obligations.
- Not provide live Personal Information, credentials or production access until the data and access controls required by this agreement and the SOW are approved.

Heutrix is not responsible for delay to the extent caused by the Client's failure to meet a dependency. Heutrix must notify the Client promptly, explain the effect and take reasonable steps to minimise avoidable delay.

5. Project governance, changes and acceptance

Each party will nominate a project contact. Project contacts may make day-to-day decisions within the signed scope but cannot change fees, liability, IP ownership, data categories, AI approval or other material terms without a signed change request.

If either party identifies a scope, timing, cost, data, security or dependency change, Heutrix will document the proposed impact. Neither party must proceed with the changed work until both parties sign the change request, except for reasonable emergency steps needed to protect people, data or systems.

The Client will review each Deliverable against the Acceptance Criteria within five business days, or another period stated in the SOW. It will accept the Deliverable or provide specific reasons and evidence of non-conformity. Heutrix will correct a material non-conformity within a reasonable agreed period and resubmit it.

If the Client does not respond within the review period after a reminder, the Deliverable is treated as accepted for project administration and invoicing only. This does not waive latent defects, warranties, consumer guarantees or rights that cannot legally be excluded.

6. Fees, GST and payment

The Client will pay the fees and approved expenses stated in the SOW. Unless the SOW says otherwise, invoices are due within seven calendar days.

Amounts are exclusive of GST. GST is payable only where Heutrix is registered or required to be registered for GST and issues a valid tax invoice. If an adjustment event occurs, the parties will make the corresponding adjustment after a valid adjustment note.

The Client may dispute an invoice in good faith by giving reasons within five business days. It must pay the undisputed amount by the due date. The parties will work promptly to resolve the disputed part. Heutrix may recover reasonable external debt-recovery costs caused by an undisputed overdue amount, to the extent permitted by law.

Heutrix may require an advance payment stated in the SOW. Advance payments are applied to the Services and are not automatically non-refundable. If the agreement or SOW ends, Heutrix will refund any amount paid for Services not performed, less fees for work properly performed and unavoidable third-party costs approved or disclosed in the SOW.

7. Intellectual property

Each party retains ownership of its pre-existing IP and Background Materials. The Client grants Heutrix a limited, non-exclusive licence to use Client Materials only to perform the Services and meet legal obligations.

The SOW must select the Deliverable IP model. If it does not, the Client owns the project-specific Deliverables on full payment, excluding Heutrix Background Materials and third-party materials. Heutrix assigns to the Client its rights in those project-specific Deliverables on full payment and will sign reasonable documents to confirm the assignment, at the Client's cost if more than administrative.

Heutrix retains all Background Materials. To the extent Background Materials are embedded in a Client-owned Deliverable, Heutrix grants the Client a perpetual, worldwide, royalty-free, non-exclusive licence to use, copy, modify and have them maintained as part of that Deliverable for the Client's internal business purposes.

If the SOW selects a Heutrix-licensed solution, the SOW will state the licence scope, users, term, support, portability and exit rights. Neither party may remove ownership notices or use the other party's branding, name, testimonial or case study without prior written consent.

8. Third-party products and open-source materials

A SOW must identify material third-party products, platforms and licence costs known at signing. Third-party terms apply between the Client and the relevant provider where the Client contracts directly. Heutrix will not accept third-party terms for the Client without written authority.

Heutrix will not knowingly include material subject to a licence that requires disclosure of the Client's proprietary source code or materials without the Client's prior written approval. Heutrix is not responsible for a third-party outage, change or defect outside its reasonable control, but will provide reasonable assistance within the SOW or an approved change request.

9. Confidentiality

The receiving party may use Confidential Information only for the agreement and may disclose it only to personnel, professional advisers and approved subcontractors who need it and are bound by confidentiality obligations. It must protect the information with at least reasonable care and promptly notify the disclosing party of known unauthorised use or disclosure.

Confidentiality does not apply to information the receiving party can demonstrate was lawfully known without restriction, independently developed, received lawfully from another source without restriction, or public other than through breach. If disclosure is legally required, the receiving party will, where lawful, give prompt notice and disclose only what is required.

These obligations continue for five years after disclosure, and for trade secrets and Personal Information for as long as the information remains protected by law or confidential in nature.

10. Privacy and security

Each party will comply with Applicable Privacy Law for its own handling. Heutrix will handle Client Data only for the Services, on documented Client instructions, and in accordance with the Data Handling Schedule. If an instruction appears unlawful or materially unsafe, Heutrix will pause the affected handling and notify the Client.

The parties will minimise Personal Information and use synthetic, de-identified or redacted information where reasonably practicable. Personal Information must not be placed in website forms, ordinary project messages, public AI services or unapproved repositories.

Heutrix will maintain reasonable technical and organisational safeguards appropriate to the agreed data class, including access control, multi-factor authentication where available, least privilege, secure sharing, supported software, device protection and access removal. The detailed controls, approved systems and incident process are in Schedule 1.

11. AI-supported work

AI is not approved by default. Heutrix may use an AI system for Client work only where the SOW or an AI Use Case Approval identifies the tool, account, purpose, input data class, retention/training settings, hosting considerations, output use and accountable human reviewer.

AI must not make or replace clinical, care, safeguarding, eligibility, legal, employment, financial, compliance, regulatory or other significant decisions. Outputs must be reviewed by an appropriately skilled person before use. The detailed rules are in Schedule 2.

12. Warranties and Australian Consumer Law

Each party warrants that it has authority to enter this agreement. Heutrix warrants that the Services will materially conform to the SOW and be performed with due care and skill. The Client warrants that it has the rights and lawful authority needed for Heutrix to use Client Materials as instructed.

Nothing in this agreement excludes, restricts or modifies a guarantee, right or remedy that cannot lawfully be excluded, including under the Australian Consumer Law. Where the law permits liability for a non-personal, non-household service guarantee to be limited, Heutrix's liability is limited, at Heutrix's option, to supplying the Services again or paying the reasonable cost of having them supplied again, but only where it is fair and reasonable to rely on that limitation.

Except for express terms and non-excludable rights, neither party gives an implied warranty. The Client remains responsible for operational adoption, professional judgement, legal compliance and final decisions; this does not reduce Heutrix's responsibility for performing the agreed Services.

13. Liability

To the extent permitted by law, neither party is liable to the other for indirect or consequential loss, or loss of profit, revenue, opportunity or goodwill, except to the extent such loss forms part of a third-party claim covered by an indemnity or is a direct and reasonably foreseeable result of breach of confidentiality, privacy or security obligations.

For all claims arising from an affected SOW, each party's aggregate general liability is capped at the greater of two times the fees paid or payable under that SOW and AUD 10,000.

For claims arising from breach of confidentiality, privacy or security obligations, or the IP indemnity, each party's aggregate liability is capped at the greater of four times the fees paid or payable under the affected SOW and AUD 50,000.

The exclusions and caps do not apply to fees properly payable, fraud, wilful misconduct, or death or personal injury caused by negligence, and do not limit rights that cannot lawfully be limited. Liability is reduced to the extent the other party or a third party caused or contributed to the loss. The parties must take reasonable steps to mitigate loss.

14. Third-party claims and indemnities

Heutrix indemnifies the Client against a third-party claim that a Deliverable created solely by Heutrix infringes Australian IP rights, except to the extent caused by Client Materials, Client instructions, unauthorised modification, combination not approved by Heutrix or use outside the SOW. Heutrix may obtain rights, modify or replace the affected item, or refund the applicable unused fees if no reasonable remedy is available.

The Client indemnifies Heutrix against a third-party claim arising from Client Materials or instructions that the Client was not lawfully entitled to provide or require, except to the extent caused by Heutrix's breach, negligence or failure to follow lawful instructions.

An indemnified party must give prompt notice, reasonable assistance and control of the defence to the indemnifying party, subject to the indemnified party's right to participate. No settlement may admit fault or impose a non-monetary obligation on the indemnified party without its consent, not to be unreasonably withheld.

15. Insurance

Each party will maintain insurance required by law and any insurance expressly stated in the SOW. Before Services involving production access or Personal Information begin, the SOW must state the verified Heutrix insurance types and limits, or record the Client's informed acceptance that a specified cover is not held. Evidence of stated cover will be provided on reasonable request.

16. Suspension

Heutrix may suspend only the affected Services if an undisputed amount remains overdue five business days after written notice, or if continuing would create a material security, privacy, safety or legal risk. Heutrix must give reasons, limit the suspension, preserve Client Data and restore Services promptly when the issue is resolved. The Client is not charged for avoidable delay caused by an unjustified suspension.

17. Termination

Either party may terminate this agreement or an affected SOW for material breach not cured within 10 business days after written notice, immediately for an incurable material breach, or where the other party becomes insolvent to the extent permitted by law.

Either party may terminate a SOW for convenience on 10 business days' notice unless the SOW states a different notice period. The Client must pay for conforming Services performed and disclosed unavoidable commitments up to termination. Heutrix must refund prepaid amounts for Services not performed and

provide reasonable handover of completed paid work.

Ending this agreement does not automatically end an existing SOW unless the notice says so. On termination, each party will return or delete Confidential Information and Client Data as required, remove access, and pay amounts properly due. Terms intended by nature to continue will survive, including confidentiality, privacy, IP, liability, disputes and payment rights.

18. Disputes

1. A party gives written notice describing the dispute and desired resolution.
2. Project leads meet within five business days and try in good faith to resolve it.
3. If unresolved after 10 business days, a director or senior delegate from each party meets.
4. If unresolved after a further 10 business days, the parties attempt mediation in Melbourne through the Resolution Institute or another agreed mediator before court proceedings.

This process does not prevent urgent injunctive relief, debt recovery for an undisputed amount, or action required to protect people, data, systems or limitation rights. The parties will continue undisputed obligations where reasonably possible.

19. General

The parties are independent contractors. Nothing creates employment, partnership, fiduciary or agency authority. Neither party may assign the agreement without the other's prior written consent, not to be unreasonably withheld, except to a related body corporate or successor to substantially all relevant business assets if the assignee can perform the obligations.

A party is not liable for delay caused by events beyond its reasonable control if it promptly notifies the other party and mitigates the effect. Payment obligations for Services already performed are not excused. Either party may terminate affected Services if the event continues for 30 days.

Changes and waivers must be in writing and authorised. Invalid terms are severed or read down only to the minimum extent required. This agreement is the entire agreement about its subject matter and does not exclude liability for fraud or misleading conduct.

This agreement is governed by the laws of Victoria, Australia. The parties submit to the courts of Victoria and courts hearing appeals from them.

20. Notices and electronic signing

A notice must be sent to the notice email in the signing block or the latest replacement notified in writing. A notice is received when the sender's system records successful transmission, unless sent after 5:00 pm or on a non-business day in the recipient's location, in which case it is received at 9:00 am on the next business day.

This agreement and a SOW may be signed electronically and in counterparts. The parties consent to reliable electronic methods that identify the signatory and indicate their intention to sign. Together, counterparts form one instrument.

Schedule 1 - Data Handling and Security

Activation: This Schedule applies whenever Heutrix handles Client Data. A SOW must expressly approve any Personal Information, sensitive information, production access or offshore handling.

A. Documented instructions and minimisation

- Handle Client Data only for the authorised purpose, systems, users, locations and retention period stated in the SOW or access form.
- Collect or copy the minimum data needed. Prefer synthetic, de-identified or redacted information for discovery, design and testing.
- Do not sell Client Data, use it for advertising, use it to train a general model, combine it for unrelated profiling or disclose it except as authorised or legally required.
- Keep an access record for approved personnel and remove access when no longer needed or at project close.

B. Minimum safeguards

- Use only the approved Client tenant or Heutrix workspace identified in the SOW. The approved platform categories are Google Workspace and Microsoft 365/SharePoint; exact applications and settings must still be approved.
- Use named accounts, least privilege and multi-factor authentication where available. Do not share credentials in ordinary email or project messages.
- Use supported devices with encryption, screen lock, malware protection and timely security updates. Avoid local downloads unless expressly approved.
- Use encrypted transport, access-controlled sharing and secure deletion appropriate to the data class.
- Do not use live Personal Information in development or testing unless the SOW explains why de-identified data is not reasonably practicable and states additional controls.
- Maintain reasonable backup and recovery arrangements for Heutrix-controlled project repositories, without overriding the Client's responsibility for Client systems.

C. Security incidents

Heutrix will notify the Client without undue delay and, where practicable, within 24 hours after becoming aware of a Security Incident affecting Client Data. Initial notice may be incomplete and will be updated as facts become available.

- The notice will describe what happened, affected systems and data, likely consequences, containment steps, evidence preservation and a contact person, to the extent known.
- Heutrix will promptly contain, investigate, remediate and cooperate with the Client's assessment and legally required notifications.
- Neither party will notify individuals, regulators or media on behalf of the other without coordination, unless legally required. Each party remains responsible for its own statutory decisions and deadlines.
- Reasonable incident assistance caused by Heutrix's breach is at Heutrix's cost; assistance caused by the Client or unrelated events is handled under the SOW or a change request.

D. Subcontractors and overseas handling

The SOW must list approved subprocessors and likely countries or regions for Personal Information where practicable. Heutrix will give reasonable prior notice of a material new subprocessor that will access Personal Information. The Client may object on reasonable privacy or security grounds; the parties will seek an alternative or may terminate the affected Services without penalty if no reasonable alternative exists.

Heutrix will not transfer or make Personal Information accessible outside Australia unless approved in the SOW and the parties have assessed applicable cross-border obligations, provider terms, access controls and risk.

E. Requests, return and deletion

Heutrix will promptly refer access, correction, complaint, regulator or legal requests concerning Client Data to the Client, unless prohibited by law, and provide reasonable assistance. Heutrix will not respond substantively on the Client's behalf without authority.

At the earlier of instruction, access expiry or project close, Heutrix will return agreed Client Data and securely delete remaining copies within 30 days, except where law requires retention. Residual backup copies will remain protected and be deleted through the normal cycle, targeted not to exceed 90 days. The handover form records completion and any exception.

Schedule 2 - Controlled AI Use

Default rule: No AI tool or use case is approved unless it is recorded in the SOW or a signed AI Use Case Approval.

A. Approved use-case record

Field	Approved setting
Tool and account	
Purpose and output	
Permitted input data	Public / internal / confidential / personal / sensitive (circle approved class)
Training and retention settings	
Hosting / access region	
Human reviewer and competence	
Prohibited uses	
Approval / expiry	

B. Mandatory controls

- Do not enter identifiable patient, participant, worker, staff or other sensitive information into a public or consumer AI service.
- Use only approved enterprise accounts and settings. Disable model training or provider reuse where required by the approved record.
- Minimise input data, remove identifiers and confidential details, and verify that prompts and outputs do not disclose protected information.
- Treat outputs as drafts. An accountable and appropriately skilled human must check accuracy, context, bias, confidentiality, professional suitability and legal requirements before use.
- Do not use AI to make or recommend clinical, treatment, safeguarding, eligibility, legal, employment, financial, compliance or regulatory decisions.
- Maintain the evidence appropriate to the use case, including approved instructions, material source references, review outcome and final accountable decision.
- Stop and escalate hallucinations, unexpected disclosure, unsafe output, model changes or incidents that could materially affect the approved risk assessment.

Signing

Each signatory confirms that they are authorised to bind the party named below. Signatures may be electronic and in counterparts.

Signed for Heutrix Pty Ltd	Signed for the Client
Signature: _____	Signature: _____
Name: _____	Name: _____
Position: _____	Position: _____
Date: _____	Date: _____
Email for notices: _____	Email for notices: _____